

ZIMBABWE

ACT

To make further provision for the revenues and public funds of Zimbabwe and to provide for matters connected therewith or incidental thereto.

ENACTED by the Parliament and the President of Zimbabwe.

PART I

PRELIMINARY

1 Short title

This Act may be cited as the Finance Act, 2024.

PART II

INCOME TAX

Amendments to Chapter I of Finance Act [Chapter 23:04]

2 Amendment of section 4A of Cap. 23:04

(1) Section 4A ("Payment of certain taxes in foreign currency")(1) of the Finance Act [*Chapter 23:04*] is amended by the repeal of paragraphs (b), (c) and (d) and the substitution of the following paragraphs—

"(b) a person other than a company, a trust or a pension fund whose taxable income from trade or investment is received or accrued in whole or in part in a foreign currency shall pay tax in the same or another specified foreign currency on so much of that income as is received or accrued in that currency:

Provided that:

(i) with effect from 1st July, 2024, where such person received or accrued more than fifty *per centum* of total income in

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foreign currency, such a person shall account for tax as if half of the income is earned in foreign currency;

(ii) for the purposes of converting any such foreign currency in terms of (i) above, tax shall be paid in local currency at the official rate of exchange on the day of payment;

(c) a company, trust, pension fund or other juristic person whose taxable income is earned, received or accrued in whole or in part in a foreign currency shall pay tax in the same or another specified foreign currency on so much of that income as is earned, received or accrued in that currency:

Provided that:

(i) with effect from 1st July, 2024, where such person received or accrued more than fifty *per centum* of its total income in foreign currency, such a person shall account for tax as if half of the income is earned in foreign currency;

(ii) for the purposes of converting any such foreign currency in terms of (i) above, tax shall be paid in local currency at the official rate of exchange on the day of payment;

(d) a person who is liable to presumptive tax in terms of section 36C of the Taxes Act as read with section 22C of the Finance Act [*Chapter 23:04*] shall pay such tax in a local currency, at the official rate of exchange on the day of payment, notwithstanding the currency of trade.".

(2) Any taxpayer referred to in section 4A(1) (b) and (c) as substituted by the Finance Act, 2024, shall remit quarterly instalments of tax in terms of section 72, in the following manner—

(a) for the period 1st April, 2023 to 30th June, 2023 (or in terms of adjusted dates referred to in the proviso to section 72(7) of the Income Tax Act [*Chapter 23:06*]), being the second quarterly instalment of provisional tax payable for the 2023 year of assessment, the taxpayer shall pay half of the foreign currency portion of tax payable in local currency at the official rate of exchange on the day of payment;

(b) for the period 1st April, 2024 to 30th June, 2024 (or in terms of adjusted dates referred to in the proviso to section 72(7) of the Income Tax Act [*Chapter 23:06*]), being the second quarterly instalment of provisional tax payable for the 2024 year of assessment, the taxpayer shall pay tax as if half of the income was earned in foreign currency, at the at the official rate of exchange on the day of payment.

3 Amendment of section 14 of Cap. 23:04

Section 14 ("Income tax for periods of assessment after 1.4.88") of the Finance Act [*Chapter 23:04*] is amended in subsection (2) by the repeal of paragraph (a) and the substitution of the following—

"(a) with effect from the period beginning on the 1st January, 2024, and ending on the 4th April, 2024, of the year of assessment beginning on the 1st January, 2024, in the case of a person other than a company, a trust or a pension fund, at the specified percentage of each Zimbabwe dollar [ZWL] of each of the following parts of his or her taxable income from employment—

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(i) so much as does not exceed two million three hundred and thirty-six thousand and sixty-five dollars;

(ii) so much as exceeds two million three hundred and thirty-six thousand and sixty-five dollars but does not exceed seven million and eight thousand and one hundred and ninety-six dollars;

(iii) so much as exceeds seven million and eight thousand and one hundred and ninety-six dollars but does not exceed twenty-three million three hundred and sixty thousand and six hundred and fifty-five dollars;

(iv) so much as exceeds twenty-three million three hundred and sixty thousand and six hundred and fifty-five dollars but does not exceed forty-six million seven hundred and twenty-one thousand and three hundred and eleven dollars;

(v) so much as exceeds forty-six million seven hundred and twenty-one thousand and three hundred and eleven dollars but does not exceed seventy million and eight one thousand and nine hundred and sixty-seven dollars;

(vi) so much as exceeds seventy million and eight one thousand and nine hundred and sixty-seven dollars;";

(a1) with effect from the period beginning on the 5th April, 2024, and ending on the 31st December, 2024, of the year of assessment beginning on the 1st January, 2024, in the case of a person other than a company, a trust or a pension fund, at the specified percentage of each Zimbabwe Gold [ZiG] of each of the following parts of his or her taxable income from employment—

(i) so much as does not exceed twelve thousand and two hundred and four Zimbabwe Gold [ZiG];

(ii) so much as exceeds twelve thousand and two hundred and four Zimbabwe Gold [ZiG] but does not exceed thirty-six thousand and six hundred and twelve Zimbabwe Gold [ZiG];

(iii) so much as exceeds thirty-six thousand and Six hundred and twelve Zimbabwe Gold [ZiG]; but does not exceed one hundred and twenty-two thousand and forty Zimbabwe Gold [ZiG];

(iv) so much as exceeds one hundred and twenty-two thousand and forty Zimbabwe Gold [ZiG] but does not exceed two hundred and forty-four thousand and eighty Zimbabwe Gold [ZiG];

(v) so much as exceeds two hundred and forty-four thousand and eighty Zimbabwe Gold [ZiG] but does not exceed three hundred and sixty-six thousand and one hundred and twenty Zimbabwe Gold [ZiG];

(vi) so much as exceeds three hundred and sixty-six thousand and one hundred and twenty Zimbabwe Gold [ZiG].".

4 Amendment of Schedule to Chapter I of Cap. 23:04

The Schedule ("*Credits and rates of income tax*") to Chapter I is amended in Part II ("*Rates of income tax on taxable income*") with effect from the initial dates of the following periods of the year of assessment beginning on the 1st January, 2024, namely, the period beginning on the 1st January, 2024, and ending on the 4th April, 2024, and the period beginning on the 5th April, 2024, and ending on the 31st December, 2024,

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respectively, by the deletion of the items relating to the level of taxable income and the substitution with the following—

"Section	*(a) Level of taxable income for period 1/1/2024 to 04/4/2024*	*Specified percentage %*
14(2)(a)(i)	Up to ZWL$2,336,065	0
14(2)(a)(ii)	ZWL$2,336 065,01 to ZWL$7, 008 196	20
14(2)(a)(iii)	ZWL$7, 008 196,01 to ZWL$23, 360 655	25
14(2)(a)(iv)	ZWL$23, 360 655,01 to ZWL$46, 721 311	30
14(2)(a)(v)	ZWL$46, 721 311,01 to ZWL$70, 081 967	35
14(2)(a)(vi)	ZWL$70, 081 967,01 and above	40

Section	*(a1) Level of taxable income for period 5/4/2024 to 31/12/2024*	*Specified percentage %*
14(2)(a)(i)	Up to ZiG12 204	0
14(2)(a)(ii)	ZiG12 204,01 to ZiG36 612.	20
14(2)(a)(iii)	ZiG36 612,01 to ZiG122 040	25
14(2)(a)(iv)	ZiG122 040,01 to ZiG244 080	30
14(2)(a)(v)	ZiG244 080,01 to ZiG366 120	35
14(2)(a)(vi)	ZiG366 120.01 and above	40.".

5 Amendment of Section 22B of Cap. 23:04

With effect from the 3rd May, 2024, section 22B ("Automated Financial Transactions Tax") of the Finance Act [*Chapter 23:04*] is amended by the repeal of paragraph (a) and the substitution of—

"(a) for each withdrawal above the local currency equivalent of one hundred United States dollars, a local currency equivalent of zero comma zero five United States dollars;".

6 Substitution of section 22C of Cap. 23:04

(1) With effect from the year of assessment beginning on the 1st January, 2024, section 22C of the Finance Act [*Chapter 23:04*] is repealed and the following section is substituted—

"22C Presumptive tax

(1) The presumptive tax chargeable in terms of section 36C of the Taxes Act shall be in the case of—

(a) informal traders (other than those referred to in paragraph (j), (m) and (l)), calculated at the rate equivalent to ten *per centum* of the monthly rentals from which they operate;

(b) small-scale miners, calculated at the rate of zero *per centum* of each dollar of the purchase price of precious metals or precious stones upon which the tax is chargeable in terms of the Twenty-Sixth Schedule to the Taxes Act;

(c) operators of taxicabs for the carriage of passengers for hire or reward having seating accommodation for not more than seven passengers, thirty-five United States dollars per month for each such taxicab so operated;

(d) operators of omnibuses for the carriage of passengers for hire or reward having seating accommodation for not less

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than eight or more than fourteen passengers, fifty United States dollars per month for each such omnibus so operated;

(e) operators of omnibuses for the carriage of passengers for hire or reward having seating accommodation for not less than fifteen or more than twenty-four passengers, sixty United States dollars per month for each such omnibus so operated;

(f) operators of omnibuses for the carriage of passengers for hire or reward having seating accommodation for not less than twenty-five or more than thirty-six passengers, eighty United States dollars per month for each such omnibus so operated;

(g) operators of omnibuses for the carriage of passengers for hire or reward having seating accommodation for not less than thirty-seven passengers, one hundred United States dollars per month for each such omnibus so operated;

(h) operators of goods vehicles having a carrying capacity—

(i) of more than ten tonnes but less than twenty tonnes two hundred United States dollars per month;

(ii) of ten tonnes or less but which is driving one or more trailers resulting in a combined carrying capacity of more than fifteen tonnes but less than twenty tonnes, five hundred United States dollars per month;

(iii) of twenty tonnes or more, five hundred and fifty United States dollars per month;

(i) operators of driving schools providing driving tuition—

(i) for class 4 vehicles only, fifty United States dollars per month;

(ii) for class 1 and 2 vehicles (whether or not in addition to providing driving tuition for other classes of vehicles), one hundred United States dollars per month;

(j) operators of hairdressing salons, five United States dollars per chair per month;

(k) informal cross-border traders, twenty *per centum* of the value for duty purposes of the commercial goods being imported by the traders concerned;

(l) operators of restaurants or bottle-stores, thirty-five United States dollars per month;

(m) cottage industry operators, one hundred United States dollars per month;

(n) operators of commercial waterborne vessels of a description referred to in paragraph 2(a) of the definition of "commercial waterborne vessel" in the Twenty-Sixth Schedule of the Taxes Act, having a carrying capacity (inclusive of cabin crew)—

(i) of not more than five passengers, thirty United States dollars per month per vessel;

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(ii) of six passengers but less than sixteen passengers, thirty-five United States dollars per month per vessel;

(iii) of sixteen passengers but less than twenty-six passengers, fifty United States dollars per month per vessel;

(iv) of twenty-six passengers but less than fifty passengers, seventy United States dollars per month per vessel;

(v) of fifty or more passengers, one hundred United States dollars per month per vessel;

(o) operators of commercial waterborne vessels of a description referred to in paragraph 2(b) of the definition of "commercial waterborne vessel" in the Twenty-Sixth Schedule of the Taxes Act (that is to say, operators of fishing rigs), eighty-five United States dollars per month;

(p) operators of beauty and massage parlours, one hundred United States dollars per month;

(q) operators of gymnasia or fitness centres, one hundred United States dollars per month;

(r) operators of butcheries, fifty United States dollars per month.

(2) Every person liable for presumptive tax shall pay the amount of the tax in local currency at the official selling rate of exchange on the day of payment.

(3) The following self- employed persons, who had previously exercised the option of paying Self-Employed Professionals' Presumptive Tax), shall comply with section 37A ("Self-assessment return") of the Taxes Act—

(a) architects registered or required to be registered under the Architects Act [*Chapter 27:01*]; or

(b) engineers or technicians registered or required to be registered under the Engineering Council Act [*Chapter 27:22*]; or

(c) legal practitioners registered or required to be registered under the Legal Practitioners Act [*Chapter 27:07*]; or

(d) health practitioners registered or required to be registered under the Health Professions Act [*Chapter 27:19*]; or

(e) real estate agents registered or required to be registered under the Estate Agents Act [*Chapter 27: 17*]:

Provided that such persons who had previously exercised the option of paying Self-Employed Professionals' Presumptive Tax shall, until the 1st January, 2025, continue to be liable to pay Self-Employed Professionals' Presumptive Tax at the rate applicable immediately before the date of promulgation of the Finance Act, 2024.".

7 Amendment of section 22G of Cap. 23:04

(1) With effect from the 3rd May, 2024, section 22C of the Finance Act [*Chapter 23:04*] is repealed and substituted by—

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"22G Intermediated Money Transfer Tax

The intermediated money transfer tax chargeable in terms of—

(a) section 36G(2) of the Taxes Act shall be calculated at the rate of zero comma zero two on every Zimbabwe Gold [ZiG] or part thereof transacted for each transaction on which the tax is payable:

Provided that if a single transaction on which the tax is payable is equivalent to or exceeds the equivalent in Zimbabwe Gold [ZiG] of five hundred thousand United States dollars (at the prevailing interbank rate) a flat intermediated money transfer tax of the equivalent in Zimbabwe Gold [ZiG] of ten thousand one hundred and fifty United States dollars (at the prevailing interbank rate) shall be chargeable on such transaction; or

(a) section 36G(2) of the Taxes Act shall be calculated at the rate of zero comma zero two on every United States dollar or part thereof for each transaction on which the tax is payable:

Provided that if a single transaction on which the tax is payable is equivalent to or exceeds five hundred thousand United States dollars a flat intermediated money transfer tax of ten thousand one hundred and fifty United States dollars shall be chargeable on such transaction; or

(b) section 36G(2) of the Taxes Act shall be calculated at the rate of zero comma zero two United States dollars on every dollar of every outbound foreign payment or part thereof for each transaction on which the tax is payable; or

(c) section 36G(3) of the Taxes Act shall be calculated at the rate of zero comma zero two United States dollars on every Zimbabwe gold-backed digital token or part thereof transacted for each transaction on which the tax is payable.".

Amendments to Income Tax Act [Chapter 23:06]

8 Amendment of section 2 of Cap. 23:06

Section 2 ("Interpretation")(1) of the Income Tax Act [*Chapter 23:06*] is amended in the definition of "year of assessment" by the insertion of the following proviso after proviso (viii)—

"(ix) the year of assessment beginning on the 1st January, 2024, in respect of the taxable income from employment of a person other than a company, a trust or a pension fund, consists of the following two periods—

A. the period beginning on the 1st January, 2024, and ending on the 4th April, 2024;

B. the period beginning on the 5th April, 2024, and ending on the 31st December, 2024.".

9 Amendment of section 35G of Cap. 23:06

Section 36G ("Intermediated Money Transfer Tax") of the Income Tax Act [*Chapter 23:06*] is amended in the definition of "Zimbabwe gold-backed digital token", by the deletion of "or "ZIG"".

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10 Amendment of section 80A of Cap. 23:06

Section 80A ("Valid tax clearance certificate required before certain trades, services or entities licensed or registered") of the Income Tax Act [*Chapter 23:06*] is amended by the insertion of the following subsections after subsection (3)—

"(4) Notwithstanding anything contained in the following Acts, the following persons who are certified, registered or licensed to practise any of the following professions shall not be certified, registered or licensed to practise the profession concerned unless (at the time the certification, registration or licensing of the person concerned is effected or renewed) there is produced to the certifying, registering or licensing authority under the Act concerned a tax clearance certificate valid no earlier than thirty days before its production—

(a) architects registered or required to be registered under the Architects Act [*Chapter 27:01*]; or

(b) engineers or technicians registered or required to be registered under the Engineering Council [*Chapter 27:22*]; or

(c) land surveyors registered or required to be registered under the Land Surveyors Registration Act [*Chapter 27:06*]; or

(d) legal practitioners registered or required to be registered under the Legal Practitioners Act [*Chapter 27:07*]; or

(e) auditors, accountants or other professionals registered or required to be registered the Public Accountants and Auditors Act [*Chapter 27:12*] or the Chartered Accountants Act; or

(f) health practitioners registered or required to be registered under the Health Professions Act [*Chapter 27:19*]; or

(g) a veterinary surgeon registered or required to be registered in terms of the Veterinary Surgeons Act [*Chapter 27:16*]; or

(h) real estate agents registered or required to be registered under the Estate Agents Act [*Chapter 27:17*]; or

(i) quantity surveyors or required to be registered under of the Quantity Surveyors Act [*Chapter 27:13*].

(5) Notwithstanding anything contained in the Road Motor Transportation Act [*Chapter 13:15*] and Insurance Act, the following any persons who are certified, registered or licensed to operate the business of the omnibus or taxicab for the carriage of goods or passengers for hire or reward, in whose name the goods vehicle, omnibus or taxicab is or is required to be registered in terms of the Road Motor Transportation Act [*Chapter 13:15*] and Insurance Act shall not be certified, registered or licensed by ZINARA nor be eligible for vehicle insurance unless (at the time the certification, registration or licensing of the person concerned is effected or renewed) there is produced to the certifying, registering or licensing authority under the Act concerned a tax clearance certificate valid no earlier than thirty days before its production.".

11 Amendment of Third Schedule to Cap. 23:06

The Third Schedule ("Exemptions from Income Tax") to the Income Tax Act [*Chapter 23:06*] is amended in paragraph 4 by the repeal of paragraph (o) and the substitution of—

"(o) a bonus or performance-related award accruing to an employee or agent in respect of his or her employment or agency, to the extent that the bonus does not exceed or, where the employee or agent receives more

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than one bonus in the year of assessment concerned, to the extent that the aggregate of the bonuses does not exceed, seven hundred United States dollars or the local currency equivalent at the time of payment of the bonus or the performance related award;".

12 Amendment of Twenty-sixth Schedule to Cap. 23:06

The Twenty-sixth Schedule ("Presumptive Tax") to the Income Tax Act [*Chapter 23:06*] is amended by the repeal of Part IVG ("Self-Employed Professionals' Presumptive Tax").

PART III

CAPITAL GAINS TAX

Amendments to Chapter VIII of Finance Act [Chapter 23:04]

13 Amendment of section 38 of Cap. 23:04

With effect from the 28th June, 2024, and for a period of six months, section 38 ("Rates of Capital Gains Tax") is amended by the repeal of paragraph (a)(iii).

14 Amendment of section 39 of Cap. 23:04

With effect from the 28th June, 2024, and for a period of six months, section 39 ("Rates of Capital Gains Withholding Tax") is amended—

(a) by the repeal of paragraph (a) and the substitution of—

"(a) in the case of a sale of a marketable security that is a listed security, two *per centum* of the price at which the security was sold. The amount so withheld shall be considered to be the final tax;";

(b) by the repeal of paragraph (c);

(c) by the repeal of paragraph (d) and the substitution of—

"(d) in the case of a sale of a marketable security other than a security referred to in paragraph (a), five *per centum* of the price at which the security was sold.".

PART IV

VALUE ADDED TAX

15 Amendment of section 12A of Cap. 23:12

The Value Added Tax Act [*Chapter 23:12*] is amended in section 12A ("Deferment of collection of tax on capital goods") by the repeal of subsection (1) and the substitution with the following subsections—

"(1) Subject to this section and to such conditions as maybe prescribed, where a person—

(a) produces proof to the satisfaction of the Minister that he or she has imported goods of a capital nature for use in the industries specified in subsection 4; and

(b) provides a statement by the Commissioner confirming that, from the scrutiny of the Zimbabwe Revenue Authority's records, that the person has not defaulted on payment of any of the taxes payable in terms of the Capital Gains Tax Act [*Chapter 23:01*], Customs and Excise Act [*Chapter 23:02*], Income Tax Act [*Chapter 23:06*] and Value Added Tax Act [*Chapter 23:12*], including tax deferred on prior importations;

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the Commissioner shall authorise a deferment of payment of tax on such goods for a prescribed period not exceeding one hundred and eighty (180) days from the date on which the goods are, in terms of section 36 of the Customs and Excise Act [*Chapter 23:02*] deemed to have been imported:

Provided that the Minister may prescribe different periods for different classes or values of goods of a capital nature.

(1a) Where any person in favour of whom deferment of tax has been authorised in terms of subsection (1) fails to pay the deferred tax by the date which the Commissioner fixes in terms of subsection (1) as the date on which payment of the deferred tax is due, that person shall not be permitted to benefit from any future deferment under subsection (1).

(1b) With effect from 1st January, 2024, notwithstanding the maximum prescribed period of deferment of tax specified in subsection (1), the Minister may, considering the quantum of investment, and the gestation period prior to commencement of sale of products therefrom, approve a period of up to three (3) years for investment projects in industries described in subsection (4)(a) and a period of up to two (2) years for investment projects described in subsection (4)(b).".

16 Amendment of section 12D of Cap. 23:12

The operation of section 12D ("Collection of tax on exportation of unbeneficiated platinum, determination of value thereof") of the Value Added Tax Act [*Chapter 23:12*] is suspended for the period from 1st January, 2023, to the 31st December, 2024.

17 Substitution of section 81A of Cap. 23:12

The Value Added Act [*Chapter 23:12*] is amended by the repeal of section 81A and the substitution of—

"81A Measures to protect value chain integrity and transparency, and to counter unfair competition by informal traders

(1) In this section—

"manufacturer" means a person who transforms raw materials, intermediate products and any other input using various tools, equipment, processes and services to produce finished products or inputs for further processing;

"non-compliant manufacturer, wholesaler or person, or person", as the context requires, means a person who is not a registered operator or any registered operator who fails to provide proof of such registration and a valid tax clearance certificate;

"retail trade" means the sale of any commodity in small quantities for consumption or use by the purchaser, and the expressions "retail transaction", "retailer" & "retail dealer" shall be construed accordingly;

"retailer" means any person engaged in the retail trade;

"wholesaler" means any person engaged in the wholesale trade, that is to say, the sale of any commodities in large quantities or in bulk to a purchaser who intends to make a profit on the resale of the commodities or to consume them.

(2) Subject to this section, no person, other than a manufacturer, wholesaler or retailer who is a registered operator, and who produces proof

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of registration as such, together with a valid tax clearance certificate, may purchase goods from a manufacturer.

(3) Subject to this section, a manufacturer shall be required to withhold an amount equal to 5% of the value of each purchase of goods by a non-compliant manufacturer, wholesaler or retailer or person and shall remit each amount so withheld to the Commissioner in such manner as the Commissioner may specify.

(4) Subject to this section, a wholesaler shall be required to withhold an amount equal to 5% of the value of each purchase of goods by a non-compliant retailer, and shall remit each amount so withheld to the Commissioner in such manner as the Commissioner may specify.

(5) Notwithstanding subsections (3), (4) and (5), no amount shall be withheld on the supply of the following—

(a) milk and bread;

(b) building materials;

(c) newspapers;

(d) airtime and mobile data;

(e) textbooks, stationery, furniture, food, detergents and other essentials to schools registered under Ministry responsible for Education;

(f) medical essentials and equipment to hospitals and clinics registered under the Ministry responsible for Health;

(g) any supplies to Government Ministries and Departments (excluding Statutory Corporations and State Enterprises).

(6) Any manufacturer or wholesaler who fails to comply with requirements of this section shall be subject to a penalty of 200% of the amount to be withheld and interest equivalent to the Bank Policy Rate plus 5%.

(7) The Commissioner may, if satisfied that a failure to withhold or to pay any amount required to be withheld was not due to an intent to evade this section, waive the payment of the whole or part of such penalty or such interest.

(8) The Minister may by regulations made under section 78 prescribe anything which it is necessary, desirable or expedient to prescribe for the purposes of this section.".

PART V

CUSTOMS AND EXCISE

18 Amendment of section 97 of Cap. 23:02

With effect from the 9th February, 2024, the Customs and Excise Act [*Chapter 23:02*] is amended by the repeal of section 97 and substitution with the following—

"97 Surtax and Special surtax on sugar content of beverages

(1) There shall be charged, levied, collected and paid in respect of goods which are imported into or manufactured or produced within Zimbabwe, surtax at the appropriate rate provided in the surtax tariff.

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(2) There shall be charged, levied, collected and paid in respect of goods which are imported into or manufactured or produced within Zimbabwe, a special surtax on the added sugar content of beverages at the appropriate rate provided in the Special surtax tariff, with effect from 9th February, 2024.".

19 Amendment of section 234 of Cap. 23:02

Section 234 ("Goods in transit") of the Customs and Excise Act [*Chapter 23:02*] is amended by the insertion of the following subsection after subsection (2)—

"(2a) The owner of any fuel being removed in transit shall, at the port of entry of the fuel, provisionally pay the duty and levies thereon as if it was not being removed in transit. Such provisional payment of duty and levies shall be reimbursed to the owner of the fuel upon the fuel being acquitted at the port of exit:

Provided that this subsection does not apply to an owner of any fuel being removed in transit who uplifts the fuel from the National Oil Infrastructure Company of Zimbabwe Private Limited (NOIC) (or any successor to that entity or other fuel procurement entity prescribed by the Minister by notice in the Gazette) at the Msasa, Mabvuku & Feruka Depots of NOIC.".

20 Confirmation of tariffs imposed, amended or replaced by Minister under sections 115 and 225 of Cap. 23:02

(1) Pursuant to sections 115 and 225 of the Customs and Excise Act [*Chapter 23:02*], the designation of foreign currency dutiable petroleum products, replacements and amendments to the Customs and Excise (Tariff) Notice and Customs and Excise (Surcharge) Notice that were published in the following statutory instruments are hereby confirmed—

(a) Statutory Instrument 249 of 2023; and

(b) Statutory Instrument 16 of 2024; and

(c) Statutory Instrument 139 of 2024 and

(2) Notwithstanding section 1(2) of Statutory Instrument 91 of 2023, the designation of foreign currency dutiable petroleum products shall be deemed to be effective from 2nd August, 2019.

PART VI

AMENDMENT OF RESERVE BANK ACT

21 Interpretation in Part VII

In this Act—

"effective date" means the 5th of April, 2024 being the date from which Statutory Instrument 60 of 2024 (that introduced the Zimbabwe Gold) took effect;

"gold coins and Zimbabwe gold-backed digital tokens" means the gold coins (engraved with the words Mosi-oa-Tunya) and tokens previously styled as "ZiG" issued by the Reserve Bank in terms of sections 7(d)(i) and 43(3) of the Reserve Bank of Zimbabwe [*Chapter 22:15*] (No. 5 of 1999);

"principal Act" means the Reserve Bank of Zimbabwe [*Chapter 22:15*] (No. 5 of 1999);

"Zimbabwe Gold" means the unit of currency of Zimbabwe as defined in section 6;

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"Zimbabwean currency" means currency which has been issued under the Reserve Bank of Zimbabwe Act [*Chapter 22:15*] (No. 5 of 1999) and which has not been demonetised under the Act.

22 Amendment of section 6 of Cap 22:15

Section 6 ("Functions of Bank") of the principal Act is amended in subsection (1) paragraph (b) by the deletion of the words "Zimbabwe dollar" and the substitution of "Zimbabwe currency".

23 Amendment of section 34 of Cap 22:15

Section 34 ("Allocation of losses or gains due to exchange rate fluctuations and pursuit of monetary policies") of the principal Act is amended—

(a) in subsection (1) by the deletion of the words "Zimbabwe dollar" and the substitution of "Zimbabwe currency";

(b) in subsection (3) by the deletion of the words "Zimbabwe dollar" and the substitution of "Zimbabwe currency".

24 Repeal of section 44B of Cap 22:15

Section 44B ("Legal tender of bond notes and coins") of the principal Act is repealed.

25 New section inserted in Cap 22:15

The principal Act is amended by the insertion in Part VI ("Banknotes and Coinage") of the following sections after section 44C—

"44D Issuance of ZiG notes and coins and legal tender of ZiG

(1) In this section—

"gold coins and Zimbabwe gold-backed digital tokens" means the gold coins (engraved with the words Mosi-oa-Tunya) and tokens previously styled as "ZiG" issued by the Bank in terms of sections 7(d)(i) and 43(3) of the principal Act of the Bank;

"in-kind royalties" means royalties in kind held on behalf of the State by the Bank in terms of section 37A ("Collection of mining royalties") of the Finance Act [*Chapter 23:04*];

"LBMA" means the London Bullion Market Association, an international trade association representing the global over the counter bullion market;

"prescribe" means prescribe by notice in a statutory instrument; "spot price of gold" means either the AM or PM price (whichever is prescribed) in United States dollars of one ounce of gold of ninety-nine *per centum* purity as quoted by the LBMA for a given day;

"ZiG" means the Zimbabwe Gold notes and coins issued by the Reserve Bank in terms of subsection (2) (the hundredth fraction of a Zig shall be denominated as a "cent").

(2) By virtue of this section the Bank may, subject to subsections (3) and (4), issue ZiG notes and coins in the prescribed units or denominations and the prescribed design, form and material.

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(3) The Bank shall only issue ZiG notes and coins against reserve assets actually held and managed by it, and the value of the ZiG issued and in circulation at any one time shall be anchored in and backed or covered by a composite basket of foreign currency reserves and precious metals received (mainly gold) and valuable minerals, held and maintained by the Bank in its vaults as part of the in-kind royalties.

(4) The reserve assets referred to in subsection (3) shall be subject to independent audit not less frequently than once in a calendar year by external auditors specifically appointed for that purpose, and the results of the audit shall be published in the Annual Report of the Bank.

(5) The value of one ZiG on the date of its initial issuance, on the effective date, shall be equivalent to the value of one milligram of gold of ninety-nine *per centum* purity as determined by the spot price of gold, and the prevailing interbank foreign exchange rate. Thereafter it shall be determined by the inflation differential between ZiG and the United States dollar inflation rates and the movement in the price of the basket of precious metals (mainly gold) and valuable minerals held as reserves by the Bank.

(6) The tender of payment of ZiG notes and coins shall be legal tender in all transactions, alongside any other currency acceptable as legal tender as prescribed under section 44A.

(7) The Reserve Bank may, in the notice prescribing the issuance of ZiG notes and coins under subsection (2), convert into ZiG balances, all Zimbabwe dollar balances held in any account with a banking institution in Zimbabwe on the day of issuance of ZiG notes and coins, using the following formula:

$$\frac{A}{B}$$

in which—

"A" represents any given Zimbabwe dollar balance on the day of initial ZiG issuance;

"B" is a figure representing the PM spot price of gold for the day immediately before the day of the initial ZiG issuance, as converted into the Zimbabwe dollar equivalent at the closing interbank rate of exchange prevailing on the day of the initial ZiG issuance.".

26 ZiG notes and coins deemed to be prescribed by section 44D of Cap. 22:15 and transitional matters

(1) ZiG notes and coins shall be deemed to have been prescribed by the Minister in terms of section 44D (2) of the principal Act.

(2) There is hereby issued by the Bank in terms of section 44D (2) of the principal Act one ZiG, two ZiG, five ZiG coins, and ten ZiG, twenty ZiG, fifty ZiG, one hundred ZiG and two hundred ZiG notes, whose composition, size and other features shall be notified to the public by the Bank.

(3) All Zimbabwe Dollar balances held in any account with a banking institution in Zimbabwe on the day of issuance of ZiG notes and coins are with effect from the effective date converted into ZiG balances using the formula referred to in section 44D (7).

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(4) For the purposes of section 44D of the principal Act, with effect from the effective date, for accounting and other purposes (including the discharge of financial or contractual obligations), all assets and liabilities that were, immediately before the effective date, valued and expressed in Zimbabwe dollars, shall be deemed to be values in ZiG at the rate as converted in terms of subsection (3).

(5) For the avoidance of doubt, the gold coins and Zimbabwe gold-backed digital tokens that are issued by the Reserve Bank in terms of section 7(d)(i) and 47(3) of the principal Act and were in circulation on the effective date shall continue in circulation after that date and remain as investment assets redeemable in accordance with terms and conditions determined by the Reserve Bank.

27 Amendment of Section 47 of Cap 22:15

Section 47 ("Exchange rate policy") of the principal Act is amended in subsection (3) by the deletion of the words "Zimbabwe dollar" and the substitution of "Zimbabwean currency".

PART VII

AMENDMENT OF OTHER ACTS

28 Amendment of First Schedule of Cap. 14:33

The First Schedule ("Reserved/threshold sectors") of the Indigenisation and Economic Empowerment Act [*Chapter 14:33*] is repealed and substituted by the following—

"FIRST SCHEDULE (Section 3A(1))

For the purposes of this Schedule—

RESERVED/THRESHOLD SECTORS

1. Transportation: passenger buses, taxes and car hire services.
2. Retail and wholesale trade.
3. Barber shops, hairdressing and beauty salons.
4. Employment agencies.
5. Estate agencies.
6. Valet services.
7. Grain milling.
8. Bakeries.
9. Tobacco grading and packaging.
10. Advertising agencies.
11. Provision of local arts and craft, marketing and distribution.
12. Artisanal mining.
13. Haulage and Logistics Industry.

The Haulage and Logistics Industry in Zimbabwe encompasses all activities, services, and operations related to the movement of goods, cargo, fuel, mineral ores and other consumables within the country's inland territory using rigid trucks (up to 15 tonnes), horse drawn trailers, including tipper trucks, dump trucks, fuel tankers other road vehicles across Zimbabwe's road networks. The industry is classified into the following segments—

(a) rigid trucks: rigid trucks, also known as straight trucks, are single-unit vehicles with both the cargo area and the driver's compartment on the

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same chassis. They are mainly used for local deliveries and start at a Gross Vehicle Mass (GVM) of around 3.5 tonnes up to a maximum of 15 tonnes;

(b) dump (tipper) trucks: a dump truck, also known as a dumping truck, dump trailer, dumper trailer, dump lorry or dumper lorry or a dumper for short, is used for transporting materials (such as dirt, gravel, or demolition waste) for construction as well as coal. A typical dump truck is equipped with an open-box bed, which is hinged at the rear and equipped with hydraulic rams to lift the front, allowing the material in the bed to be deposited ("dumped") on the ground behind the truck at the site of delivery;

(c) horse drawn tipper trucks: refers to large trucks usually with 30 000 tonnes capacity or more whose cargo area and the driver's compartment are detached. They are used mainly to transport built material such as mineral ores and other related materials.

(d) fuel and Liquefied Petroleum Gas tankers: refers to motor vehicle used for the transportation or delivery of petroleum products such as petrol, diesel, jet fuel, Liquefied Petroleum Gas or any other petroleum products. They vary in size but usually capacity is between 6 000L and 40 000L;

(e) refrigerated trucks: used for transporting perishable items under controlled temperatures and are the backbone of delivering fresh food and vital medications for both humans and animals. Most refrigerated trucks come in small sizes ranging from1 tonne to around 10 tonne capacity trucks;

(f) containerised cargo and side tents trucks: These are mainly used for shipping purposes but locally are used to transport goods which require efficient and secure handling in transit.

14. Borehole Drilling

The borehole drilling industry in Zimbabwe involves the exploration, drilling, and installation of water boreholes to provide sustainable water sources for domestic, agricultural, and industrial use. The industry is classified into the following segments—

(a) exploratory drilling: this involves geological surveys and drilling to determine the presence of groundwater. Specialised equipment and techniques are used to locate and assess aquifers;

(b) production drilling: this segment focuses on the actual drilling of boreholes for water extraction. It involves the use of rotary and percussion drilling methods to reach desired depths;

(c) borehole installation: after drilling, the installation of borehole casing, screens, and pumps is conducted to ensure proper water extraction and sustainability;

(d) maintenance and rehabilitation: this includes regular maintenance of boreholes, including cleaning, repairs, and rehabilitation to ensure continuous water supply and prevent contamination;

(e) consulting and testing services: providing expert advice, water quality testing, and feasibility studies to ensure optimal borehole performance and compliance with regulatory standards.

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15. Clearing and Customs

The Customs Clearing Industry in Zimbabwe involves all activities related to the facilitation of goods through customs borders, ensuring compliance with regulatory requirements and efficient processing of imports and exports. The industry is classified into the following segments—

(a) documentation processing: preparation and submission of necessary documents, including bills of lading, commercial invoices, and customs declarations to ensure compliance with import and export regulations;

(b) customs brokerage: licensed brokers act on behalf of clients to navigate customs regulations, classify goods, and calculate duties and taxes accurately;

(c) cargo inspection and verification: coordination of inspections by customs authorities to verify the contents and value of shipments, ensuring adherence to import and export regulations;

(d) duty and tax payment: management of duty and tax payments, including calculation, payment facilitation, and securing refunds or rebates where applicable;

(e) logistics coordination: collaboration with shipping and transport companies to ensure timely and efficient movement of goods through customs borders.

16. Shipping and Forwarding

The Shipping and Forwarding Industry in Zimbabwe involves the coordination and management of the transportation of goods from one location to another, including international shipping and local distribution. This industry is essential for global trade, ensuring the efficient movement of goods across borders and within the country. The industry is classified into the following segments—

(a) freight forwarding: coordination of the shipment of goods *via* air, sea, or land, including route planning, carrier selection, and documentation management;

(b) warehousing and storage: provision of storage facilities for goods awaiting shipment or distribution, including inventory management and security services;

(c) customs clearance: ensuring compliance with customs regulations and facilitating the clearance of goods through customs borders;

(d) transportation services: arranging the movement of goods from ports to final destinations using various modes of transport, including trucks, rail, and air cargo;

(e) logistics consulting: offering expert advice on supply chain optimization, cost reduction, and efficient transportation strategies.

17. Pharmaceutical retailing

The Pharmaceutical Retailing Industry in Zimbabwe involves the sale and distribution of medications and health-related products to consumers through retail pharmacies and other outlets. This industry plays a crucial role in providing access to essential medications and health care products, contributing to public health and well-being. The industry is classified into the following segments—

(a) community pharmacies: retail outlets that provide prescription medications, over-the-counter drugs, and health-related products directly to consumers;

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(b) hospital pharmacies: pharmacies located within hospitals that supply medications to inpatients and outpatients, ensuring proper medication management and patient care;

(c) online pharmacies: digital platforms that offer the sale and delivery of medications and health products, providing convenience and accessibility to consumers;

(d) pharmaceutical wholesalers: companies that supply medications and health products to retail pharmacies and other health care providers, ensuring a steady supply chain;

(e) consultation and advisory services: offering professional advice on medication use, health management, and wellness to consumers, enhancing the role of pharmacies in health care.".

29 Amendment of section 3 of Cap. 22:23

Section 3 ("Application of Act") of the Public Procurement and Disposal of Public Assets Act [*Chapter 22:23*] is amended by the insertion of the following subsections after subsection (9)—

"(10) Notwithstanding any exemption granted to an entity under subsection (9), such entity shall nevertheless comply with guidelines issued by the Procurement Regulatory Authority of Zimbabwe governing the criteria by which the entity shall regulate its procurement practices, as read with section 44 of the Public Finance Management Act [*Chapter 22:19*] and section 195 of the Constitution.

(11) In the event that the entity referred to in subsection (9) is alleged to be in violation of the guidelines referred to in subsection (10), the Procurement Regulatory Authority of Zimbabwe may institute an investigation in terms of section 96 of the Public Procurement and Disposal of Public Assets Act [*Chapter 22:23*].

(12) The Procurement Regulatory Authority of Zimbabwe shall give the entity twenty-one (21) days' notice to make representations on the findings of the investigations referred in subsection (11).

(13) Subject to subsection (12), the Procurement Regulatory Authority of Zimbabwe shall make appropriate recommendations to the President in line with the findings of an investigation referred in subsection (11).

(14) Upon receipt of such recommendations, the President may, in relation to any entity that is the subject of the findings concerned, by notice in the *Gazette* withdraw its exemption under subsection (9) (for a defined period or indefinitely) or vary the terms of the exemption.".

30 Repeal of section 22 of Cap. 22:20]

The Sovereign Wealth Fund of Zimbabwe Act [Chapter 22:20] (No.7 of 2014) is amended—

(a) by the repeal of section 22;

(b) in section 27—

(i) by the deletion of the title and the substitution of "Compliance with host country laws";

(ii) by the repeal of subsection (2).

31 New section inserted in Cap. 2:08

The Privileges, Immunities and Powers of Parliament Act [*Chapter 2:08*] is amended by the insertion of following section after section 33—

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"34 Disclosure of assets and financial interests by Members of Parliament

(1) Standing Orders shall make provision for—

(a) the Clerk of Parliament to establish and keep up to date an assets and financial interests disclosure register (in this section called an "asset disclosure register") for the purposes of this section, and the appointment of one or more specified officers (in this section called an "asset disclosure officer") who shall be responsible for administering the register on behalf of the Clerk;

(b) every Member of Parliament at specified intervals to provide the asset disclosure officer with a written declaration listing in full—

(i) all immovable property which the Member owns, leases or in which he or she has any other interest; and

(ii) all movable property, exceeding such value as may be prescribed, which the Member owns, leases or in which he or she has any other interest; and

(iii) any business in which the Member has an interest or which he or she plays any part in running;

and stating in each case the nature of the interest in the property or business concerned.

(2) For the purpose of this section Standing Orders shall make provision for—

(a) the extent, specificity and regularity of asset disclosure; and

(b) the extent to which the asset disclosure register may be availed to the public for inspection; and

(c) the extent to which the asset disclosure requirement shall apply to spouses and children and other dependent or non-dependent family members and business or non-business associates of the Member of Parliament concerned;

(3) Any deliberate omission from a written declaration of any matter or thing required by the asset disclosure regulations to be disclosed therein, or makes any false statement therein, shall make the Member of Parliament required to submit such a declaration liable to be prosecuted for contravening section 181 ("Perjury") of the Criminal Law Code.

(4) Any Member of Parliament who refuses or deliberately avoids submitting an asset disclosure declaration in accordance with the relevant Standing Orders shall be guilty of contempt of Parliament.

(5) Standing Orders shall make provision for the framing and enforcement of a code of conduct for Members of Parliament.".

32 New section inserted in Cap. 9:24

The Money Laundering and Proceeds of Crime [*Chapter 9:24*] (No. 4 of 2013) is amended by the insertion of following section after section 102—

"102A Disclosure of assets and interests by public officers

(1) In this section—

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"relevant entity" means any institution or agency of Government (branch, commission, service, statutory body or disciplined force) established by any of the Acts listed in paragraphs (a) to (g).

(2) Until such time as one or more Acts of Parliament are enacted in compliance with section 198 of the Constitution (whether by way of amendment of each the following Acts or by means of one or more self-contained Acts of Parliament speaking to each class of public officer to which the following Act relate, or any combination of them), this section shall have effect for the purposes of compliance therewith in relation to public officers (including judges and magistrates) and employees whose employment is or conditions of service of office are governed by—

(a) the Judicial Service Act [*Chapter 7:18*] (Act No. 10 of 2006); and

(b) the Public Service Act [*Chapter 16:04*]; and

(c) the Attorney-General's Office Act [*Chapter 7:19*] (Act No. 4 of 2011); and

(d) the National Prosecuting Authority [*Chapter 7:20*] (No. of 5 of 2014); and

(e) the Defence [*Chapter 11:02*]; and

(f) the Police [*Chapter 11:10*]; and

(g) the Prisons and Correctional Service Act [*Chapter 7: 21*] (Act No. 9 of 2023); and

(h) the Revenue Authority [*Chapter 23:11*] (Act No. 17 of 1999).

(3) Notwithstanding anything contained in those Acts, regulations may be made under those Acts (hereinafter called the "asset disclosure regulations") in virtue of this section providing for—

(a) the establishment and upkeep by the relevant entity concerned of an assets and interests disclosure register (in this section called an "asset disclosure register") for the purposes of this section, and the appointment of one or more specified officers (in this section called an "asset disclosure officer") who shall be responsible for administering the register;

(b) every public officer of or above a specified level of seniority employed by or holding office in the entity concerned, as soon as possible after being employed, appointed or re-appointed (and in any event within three months after the appointment or re-appointment) as—

(i) a member of the commission, board or other governing body of the entity concerned; or

(ii) an office holder of or employee in the entity concerned;

to provide the asset disclosure officer with a written declaration listing in full—

A. all immovable property which the public officer owns, leases or in which he or she has any other interest; and

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B. all movable property, exceeding such value as may be prescribed, which the public officer owns, leases or in which he or she has any other interest; and

C. any business in which the public officer has an interest or which he or she plays any part in running;

and stating in each case the nature of the interest in the property or business concerned.

(4) Asset disclosure regulations shall, with respect to—

(a) the extent, specificity and regularity of asset disclosure; and

(b) the extent to which the asset disclosure register may be availed to the public for inspection; and

(c) "the extent to which the asset disclosure requirement shall apply to spouses and children and other dependent and business associates of the public officer concerned";

be benchmarked on those provisions for the same matters contained in the Standing Orders of Parliament that are applicable to asset disclosure by members of Parliament, that is to say, shall not impose less stringent or less transparent requirements than those provided for in such Standing Orders.

(5) Any public officer who deliberately omits from a written declaration of any matter or thing required by the asset disclosure regulations to be disclosed therein, or makes any false statement therein, shall make the public officer required to submit such a declaration liable to be prosecuted for contravening section 181 ("Perjury") of the Criminal Law Code.

(6) Any refusal or deliberate avoidance of an obligation to submit an asset disclosure declaration in accordance with the requirements of the asset disclosure regulations shall render the public officer concerned (notwithstanding anything contained in constitutive Act of the relevant entity concerned) liable to be disciplined for misconduct in accordance with the disciplinary provisions enacted by or under the constitutive Act of the relevant entity.

(7) To the extent that no code of conduct to be observed by public officers of a relevant entity has been enacted by or under the constitutive Act of the relevant entity concerned, the asset disclosure regulations of the relevant entity may enact such a code.".

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